Contents

9. DEVELOPMENT IN THE INDUSTRY & EMPLOYMENT ZONE 9.1
9.1 INDUSTRIAL DEVELOPMENT IN ZONE 4 LEP 2000 Cl 57 ..... 9.1
9.2 SUBDIVISION IN INDUSTRIAL ZONE LEP 2000 Cl 57 ..... 9.2
LOT SIZE AND SHAPE 9.2
ACCESS 9.3
PO 9.2-1 PLANNING OUTCOMES – INDUSTRIAL SUBDIVISION 9.3
9.3 DESIGN AND SITING OF INDUSTRIAL DEVELOPMENT LEP 2000 Cl 57 ..... 9.3
SITE COVERAGE 9.3
FRONT SETBACKS 9.3
DISTRIBUTOR ROADS 9.4
BUILDINGS 9.4
FENCING 9.4
PARKING AND ACCESS 9.4
VEHICLE ACCESS 9.5
OUTDOOR STORAGE 9.5
PO 9.3-1 PLANNING OUTCOMES – INDUSTRIAL-SITE DEVELOPMENT 9.5
9.4 SPECIFIC REQUIREMENTS FOR CLERGATE ROAD INDUSTRIAL AREA 9.6
ROADS 9.6
SPECIFIC SITE REQUIREMENTS 9.6
SERVICES 9.6
PO 9.4-1 PLANNING OUTCOMES – CLERGATE ROAD INDUSTRIAL AREA 9.7
9.5 RETAILING IN INDUSTRIAL AREAS LEP 2000 Cl 58 ..... 9.7
RETAILING IN ASSOCIATION WITH ANOTHER USE 9.7
RETAILING TO SERVE THE NEEDS OF THE WORKFORCE 9.7
BULK RETAIL 9.7
PO 9.5-1 PLANNING OUTCOMES – RETAILING IN INDUSTRIAL AREAS 9.8
9.6 DEVELOPMENT NEAR A RESIDENTIAL ZONE LEP 2000 Cl 59 ..... 9.8
PO 9.6-1 PLANNING OUTCOMES – INDUSTRIES NEAR RESIDENTIAL AREAS 9.8

9. DEVELOPMENT IN THE INDUSTRY & EMPLOYMENT ZONE

9.1 INDUSTRIAL DEVELOPMENT IN ZONE 4 LEP 2000 Cl 57

The main industrial areas in the City are:

- *Leewood Industrial Estate* – a fully-serviced, planned industrial estate in the south-east of the Orange Urban area accessed by Elsham Avenue and Blowes Road; developed in the 1970s in association with the City's Growth Centre planning, with lots in excess of 2,000m^2.

- *Narrambla Business Park* – a fully-serviced, planned industrial estate developed during the 1990s with access from William, McLachlan and Phillip Streets in the north-east of the urban area of Orange, with lots in excess of 2,000m^2. The estate is being developed on a staged basis.

- *Clergate Road Industrial Area* – providing for larger sites for large industries such as potentially-offensive industries undertaking wool topmaking, abattoir and stone milling. This area is expected to continue to provide for industries requiring larger areas of land. Pending the provision of sewer facilities, "dry" industries with low-water demands on sites over 2 hectares in area are appropriate.

- *Barrett Estate – located off Wentworth Lane*. The area was originally used for rural industries such as cool stores on the edge of the urban area. An integrated industrial development

comprising a number of industrial buildings was established with the Growth Centre to temporarily provide for new industry while new premises were established. A range of industrial uses now occupies the area. Industries are also established within adjoining Kenna Street. This area adjoins residential areas, which pose some challenges to the nature of industrial operations.

- *Edward Street (southern end)* – an area linking with Leewood, this area is based around the Electrolux manufacturing plant, which produces household appliances. It also includes Orange Saleyards which, subject to relocation, provides potential for further industrial lots.

- *Lords Place South/Peisley Street and Forest Road* – industrial areas on the western side of the Great Western Railway in the vicinity of the East Fork Railway area and extending to Tynan Street, generally in proximity of Leewood and Electrolux on the opposite side of the railway.

- *William/Byng/March/McLachlan and Peisley Street areas in the Suburbs of Bowen and Bletchington* – areas situated generally north of the CBD around the railway line. Some land fronting William and Byng Streets comprises former residential lots.

9.2 SUBDIVISION IN INDUSTRIAL ZONE LEP 2000 Cl 57

LOT SIZE AND SHAPE

To ensure that the different industrial areas provide a range of lot sizes for the various needs of industry, the following table outlines appropriate minimum lot sizes for industrial areas:

LOCATION	**MINIMUM LOT SIZE** (excluding Strata or Community Title subdivisions)
Leewood (excluding Scott Place) and Narrambla	2,000m^2
Clergate Road Industrial Area (land north of Farrell Road)	4,000m^2 for serviced land (ie, water and sewer) with access off a road other than Clergate Road: 1 hectare for land with access to Clergate Road. 2 hectares for any land not connected to public sewerage facilities (NOTE: the area of land may need to be larger for on site warustewater demands.
Clergate Road Industrial Area (land south of Farrell Road)	1,000m^2 for serviced land (ie, water and sewer). Lots as existing at the date this Plan come into effect for unsewered land.
Scott Place, Forest Road and Lords Place South	1,000m^2.
Inner City Areas (ie, areas excluding the above)	800m^2 subject to meeting access, parking, unloading and landscaping requirements.

Lots should have a regular shape to optimise the potential arrangement of industrial buildings, landscaping, vehicular access and manoeuvring. The preferred ratio of the lot frontage to depth would not exceed a ratio of 1:2.

ACCESS

Lots should have frontage to a local public road unless they have a private access provided in accordance with a Community or Strata Title Scheme. Rights-of-way to access industrial lots are not encouraged. Where there is no alternative to a right-of-way, access must have sufficient width and the accessway must be constructed according to the standards in the Development and Subdivision Code. A turning circle sufficient to allow for heavy vehicles must be provided in a right-of-way serving at least three lots

An accessway for a "battleaxe"-shaped lot or right-of-way should be a minimum of 10 metres wide to provide for passing of large industrial vehicles, landscaping and services.

PO 9.2-1 PLANNING OUTCOMES – INDUSTRIAL SUBDIVISION	
1	The subdivision provides for a range of lot sizes consistent with the existing or proposed character of the industrial locality (with reference to the above table).
2	Lots have a regular shape to facilitate the establishment of large, open industrial buildings.
3	The subdivision is designed and constructed according to the Development and Subdivision Code.
4	The land is adequately serviced for industrial development.

9.3 DESIGN AND SITING OF INDUSTRIAL DEVELOPMENT LEP 2000 Cl 57

SITE COVERAGE

50% site coverage is appropriate for development of industrial land to provide for on-site parking, vehicle manoeuvring and landscaping and to create an open, landscaped character for industrial areas. Council may agree to development that exceeds 50% site coverage where Council is satisfied that the development achieves appropriate setbacks, parking, access, loading/unloading, manoeuvring and landscaping for the particular setting.

FRONT SETBACKS

Lots greater than 1,000m^2

Industrial buildings should be setback a minimum of 10 metres from the front boundary to provide a landscaped setting for industrial areas, with buildings set back behind landscaping. A minimum setback of 5 metres is to apply to a side street for corner lots.

Lots with an area less than 1,000m^2

A setback of 5 metres is appropriate for small industrial lots; however, where setbacks less than those stated above already exist on adjacent land (such as inner-city industrial areas), the new building may be set back a comparable distance to existing development.

Car-parking and manoeuvring areas can be located in front of the building line provided that a reasonable landscaped area with a minimum width of 2 metres (3m-width is preferred) is established at the front boundary.

Clergate Road

A 10m setback applies to all lots that have frontage to Clergate Road, including a corner allotment.

DISTRIBUTOR ROADS

Buildings need to be set back a minimum of 10 metres from a distributor road boundary to provide a reasonable separation of buildings from the distributor road. A landscaped buffer with a minimum width of 3 metres should be established along the boundary of an industrial lot adjoining a distributor road. Such landscaping should effectively screen any outdoor storage or truck parking areas from the distributor road.

BUILDINGS

To ensure that industrial buildings contribute to the urban character of the City, non-reflective materials on walls and roofs should be used, such as brick, concrete or "Colorbond" cladding in light or neutral colours.

The front building façade should include architectural features - such as display windows, awnings or verandah treatment, indented parapets or gable ends - to provide relief aspects to the front façade.

FENCING

Security fencing is encouraged to be located at or behind the front building façade; however, due to increased concerns over security throughout the community, it is acknowledged that security fencing around boundaries is often sought to protect industrial premises when they are not operating. In such instances, additional landscaping should be established adjacent to these fences to soften the visual impact of security fencing on street frontages.

Alternatives to chain-wire fencing - such as powder-coated, high, picket fencing - should be considered to improve presentation to the street.

PARKING AND ACCESS

Car parking to cater for all users of the site (customers, visitors and people employed at the site at any one time) should be provided on the land and designed in accordance with the appropriate standard. For convenience, the following rates apply:

DEVELOPMENT USE	CAR PARKING REQUIREMENT
Industry/warehouse/depot	1 space per 100m^2 gross floor area or 1 space per 2 employees, whichever is greater
Bulk Retail or shops	1 space per 50m^2
Research establishments	1 space per 50m^2 or 1 space for every 2 employees whichever is greater

Car parking is to be conveniently located for all users and separated from heavy-vehicle manoeuvring areas. Parking areas for use by customers should therefore be located adjacent to office or display areas.

Parking areas are to be paved with appropriate materials and line-marked.

Expected employee numbers should be provided with development applications for specific proposals where the occupant is known in order to permit an assessment of required car spaces.

VEHICLE ACCESS

All loading and unloading of vehicles needs to be carried out from wholly within the property. Loading areas/bays are to be accessible at all times and paved to the satisfaction of Council.

A vehicular-access driveway should be no less than 6-metres wide at the property boundary. Driveway widths may be varied at Council's discretion to ensure that vehicles may exit the development without crossing the centre line of the public road.

Internal-traffic facilities are to be designed in a manner that will facilitate manoeuvring of vehicles so that no vehicles would have to reverse onto or from a public road

Driveways should be located a minimum distance of 6 metres from an intersection of a public road.

Driveways should be positioned at right angles to the kerb to ensure safe entry and exit from the site and should incorporate heavy-duty footpath crossings.

Manoeuvring areas should be designed to allow uninterrupted access and turning facilities for all vehicles using the site. AUSTROADS Design Vehicles and Turning Path Templates (Publication AP-34/95) is to be applied in the design of internal traffic areas.

OUTDOOR STORAGE

Storage of goods, materials, plant or equipment outdoors should only be carried out behind the building line and be screened from all public places (including roads and public parks) and adjacent residences.

PO 9.3-1 PLANNING OUTCOMES – INDUSTRIAL-SITE DEVELOPMENT

1 Buildings are set back a minimum of 10 metres from front boundaries (5 metres to a secondary boundary on a corner lot) for lots greater than 1,000m^2 or 5 metres for lots less than 1,000m^2 or otherwise to a setback consistent with existing setbacks in established areas. A 10m setback applies to lots that have frontage to Clergate Road.

2 Buildings cover up to 50% of the site area (excluding the area of accessways for battleaxe lots).

3 Landscaping is provided along boundaries fronting roads including trees with an expected mature height at least comparable to the height of buildings on the site. All sites contain an element of landscaping. Landscaping provided is of a bulk, scale and height relative to buildings nearest the front property boundary so as to provide beautification and visual relief to the built form proposed or existing on the site. The depth of the landscape bed at the site frontage is sufficient to accommodate the spread of plantings that meet the abovementioned outcomes but, where practicable, a minimum depth of 3.5m is provided. Plantings are designed to provide shade for parking areas, to break up large areas of bitumen, to enhance building preservation and to screen against noise.

4 Architectural features are provided to the front building façade to provide relief using such elements as verandahs, display windows, indented walls, etc.

5 External materials consist of non reflective materials.

6 Adequate parking and on-site manoeuvring is provided.

7 Advertising involves business-identification signs within the front façade and/or by a pole sign comparable to the relative height to the main building on the site.

8 Security fencing is located or designed in a manner that does not dominate the visual setting of the area.

9.4 SPECIFIC REQUIREMENTS FOR CLERGATE ROAD INDUSTRIAL AREA

The Clergate Road area was originally established to provide for industries that required large land areas due to their potential off-site impacts.

The Clergate Road Industrial Area has specific development requirements for industrial development to occur along a former rural road and in an area with staged provision of services.

ROADS

To ensure that the service and function of Clergate Road as an industrial collector road is optimised, direct vehicle access to Clergate Road is not appropriate where access can be provided from a connecting road.

Clergate Road will be upgraded to a 7-metre-wide sealed carriageway on a 9-metre-wide rural road formation consistent with its function as an industrial collector road.

New roads to connect to Clergate Road are to be constructed to an industrial standard in accordance with Council's Development and Subdivision Code, including full kerb and gutter and laybacks to all side roads and pipe culverts to Clergate Road of an appropriate width to serve the development.

SPECIFIC SITE REQUIREMENTS

A 20-metre-wide landscape buffer strip along the western ridge is to be provided prior to the release of any industrial subdivision within the subject Clergate Road Industrial Area. Any subdivision film plan must indicate an easement or restriction-to-use over the buffer area.

SERVICES

Approval of industrial development in the Clergate Road Industrial Area is subject to Council being satisfied that suitable arrangements have been made for water supply and the disposal of sewage.

Unserviced lots (lots without connection to the public sewerage system) require a minimum area of 2 hectares to allow for the development of industries that have a low-water demand – ie, “dry” industries such as warehouses, transport terminals, depots and the like. Industries with high-water demand and which propose to dispose of wastewater on site must be able to demonstrate that there is sufficient suitable land provided for sustainable wastewater disposal.

Council will provide sewer services to some areas of the Clergate Road Industrial Area. It is the responsibility of developers to connect to these mains provided by Council, including the provision of easements as required through private land.

Developers of the land are responsible for providing sewerage and drainage facilities capable of servicing all lots in accordance with standards required in Council’s *Development and Subdivision Code*. Developers will also be responsible for water connection from Council's water mains.

Land that is currently unserviced may be developed on the understanding that future connection of services to Council-provided and funded major works will be the full responsibility of developers and will not place a burden on Council resources by developing in an uncoordinated manner.

PO 9.4-1 PLANNING OUTCOMES – CLERGATE ROAD INDUSTRIAL AREA	
1	A range of lot sizes are provided with a small number of large lots (2ha and greater) accessing Clergate Road and smaller lots (minimum area of 4,000m^2) subject to the provision of sewerage facilities fronting new industrial roads.
2	Landscaped areas are established along the western ridge.
3	Clergate Road is upgraded to a rural collector road with a formed pavement width of 9 metres (sealed carriageways of 7 metres).
4	New roads are constructed with kerb and gutter and associated drainage structures.
5	Development is carried out in accordance with Section 9.3 above.

9.5 RETAILING IN INDUSTRIAL AREAS
LEP 2000 Cl 58

Retailing in industrial areas is only appropriate where it relates to industrial activities and does not detract from the primary retailing function of business zones.

RETAILING IN ASSOCIATION WITH ANOTHER USE

The primary retailing activity in industrial areas is sales associated with another use such as an industry or warehouse. Such retailing often involves display areas associated with the activity and sales areas. Retailing must be ancillary to the main use. An application for development that is permissible in the Industry and Employment Zone, which includes an ancillary retailing component, must demonstrate that the use is ancillary.



Photograph - Leewood food premises

Information needs to be submitted demonstrating that the retailing component of the use is ancillary. Such information could achieve ???? where the sales area is significantly less than other uses of the site or where the number of people employed in sales is significantly lower than people employed in other activities.

RETAILING TO SERVE THE NEEDS OF THE WORKFORCE

Shops in industrial areas that are considered to serve the needs of workers may include a:

- take away food shop;
- newsagent; or
- general or convenience store.

A maximum floor area of 200m^2 is considered appropriate for shops in industrial areas. Larger shops may be considered where the application demonstrates to the satisfaction of Council that the shop will not prejudice the function of business areas in Orange.

BULK RETAIL

Bulk retail sales appropriate in industrial areas include bulk retail sales associated with agriculture, building or motor trades. Retailing of specific furniture such as office or second-hand furniture is also considered appropriate.

Bulk retail for other purposes must be carried out on land within Zone 3(a) Regional Centre or Zone 3(c) Bulk Retail.

PO 9.5-1 PLANNING OUTCOMES – RETAILING IN INDUSTRIAL AREAS

1 Applications clearly demonstrate that the retailing does not prejudice the viability or function of zoned business areas or that the retailing is ancillary to a use permitted in the zone.

9.6 DEVELOPMENT NEAR A RESIDENTIAL ZONE LEP 2000 Cl 59

LEP 2000 introduced clause 59 to ensure that off-site impacts are particularly addressed by industries in the vicinity of residential areas. Prior to LEP 2000, light-industrial zones were broadly applied near residential areas. Special consideration should be given to industrial development where emissions (such as noise or other air emissions) may potentially affect nearby residentially-zoned land (including urban or rural-residential land) to ensure that the industry does not adversely affect the amenity of residential areas.

Buildings should be designed so that industrial activity is oriented away from the residential areas. Rear walls without openings can be used to provide effective noise barriers.

Industrial development adjoining residential properties should provide landscaping along the boundary to screen the industrial development from the residential land. Industrial buildings should not overshadow the main private open space or living areas of adjacent residential buildings. Industrial buildings adjoining residential land should not exceed 8 metres in height.

Industrial activities involving late-night operations and where reversing warning signals operate on vehicles need particular attention in the vicinity of residential areas.

PO 9.6-1 PLANNING OUTCOMES – INDUSTRIES NEAR RESIDENTIAL AREAS

1 Applications for development that has the potential to impact on residential areas in the vicinity identify likely impacts and outline reasonable mitigation measures.
2 Industries with potentially significant off-site impacts are located well away from areas zoned residential or rural residential and take into account the proximity to existing houses.
3 Impacts from existing developments affected by industrial “control-area” provisions under LEP 2000 are contained within the control area.

RELATED INFORMATION – DEVELOPMENT NEAR A RESIDENTIAL ZONE

1 NSW EPA Industrial Noise Policy
2 NSW EPA Draft Odour Policy

(next page is Page 10.1)